

ZEW

Notice

pursuant to Article 12(1) in conjunction with Articles 13, 14 and 21(4) of the General Data Protection Regulation (GDPR)

You are about to take part in our Financial Market Survey (FMT).

The purpose of the survey is to determine expectations regarding the international economy and the financial markets and potentially to use the findings for research projects about the formation of expectations.

For this purpose, we will process your identification, profile and contact details, as well as your answers to the subject-specific questions, insofar as you provide the information in the questionnaire before you. In addition, we will process the date and, where applicable, the time of receipt of any questionnaire returned to us.

The controller responsible for processing the above-mentioned data ("your data") is:

ZEW – Leibniz Centre for European Economic Research, Mannheim
Research Unit "Pensions and Sustainable Financial Markets"
Address: L 7, 1, 68161 Mannheim
Postal address: P.O. Box 103443, 68034 Mannheim, Germany
Phone: +49 (0)621 1235-01 Fax: +49 (0)621 1235-224

The data protection officer for the controller is:

Dr. Thomas Wirth
Address and postal address: as above
E-mail: datenschutzbeauftragter@zew.de Phone: +49 (0)621 1235-116

The legal basis for any non-economic (within the meaning of Section 1 of the Annex to No. 2.2 of the WGL Resolutions) processing of personal data at ZEW, including the processing of your data in the present case, is Article 6(1) e) of the GDPR in conjunction with Article 6(3) b) of the GDPR (see also Recitals 41 and 45 of the GDPR), in conjunction with Sections 2 and 3 of ZEW's Articles of Association dated 16 November 2018, in conjunction with Section 65(1) No. 1 of the State Budget Code of Baden-Württemberg (LHO BW). This is because the processing is necessary for the performance of a task that is of significant interest to the State of Baden-Württemberg, which is the sole shareholder of ZEW. This task is the non-profit, disinterested and not primarily commercially motivated scientific research conducted at ZEW, for which ZEW, as an institution of national scientific-policy interest, receives funding from the federal government and states pursuant to Section 1(1) of the WGL implementation agreement (AV-WGL) in conjunction with Section 1(2) of the AV-WGL and the annex to the AV-WGL. The processing is therefore lawful even without your consent pursuant to Article 6(1) a) of the GDPR.

We will disclose your data to the following recipients outside ZEW:

1. The data collected as part of this survey are stored and processed in pseudonymised form on servers belonging to Hetzner Online GmbH, Industriestr. 25, 91710 Gunzenhausen, Germany.

Your data are stored and processed in anonymised form using cloud services provided by Microsoft, Microsoft Ireland Operations Limited, One Microsoft Place, South County Business Park, Leopardstown, Dublin 18, Ireland. Hetzner and Microsoft act as our hosting, storage and IT service providers and process the data exclusively on our behalf based on data processing agreements in accordance with Article 28 of the GDPR. The processing is carried out for the purpose of securely storing, technically providing and analysing the survey data. Insofar as processing via Microsoft services takes place outside the EU/EEA, or if this cannot be ruled out, such processing is carried out based on appropriate safeguards as provided in Article 44 et seq. of the GDPR, in particular standard contractual clauses.

2. We use Inxmail GmbH, Wentzingerstr. 17, 79106 Freiburg, Germany to send emails to participants in this survey. For this purpose, your e-mail address and your name (to enable us to address you personally) are transmitted to Inxmail and processed there exclusively on our behalf for the purpose of sending e-mails. We have entered into a data processing agreement with Inxmail in accordance with Article 28 of the GDPR.

3. We will disclose your responses to the subject-specific questions, in anonymised form, to any academic researcher outside ZEW who successfully submits a request to us for access, in order to enable them to conduct economic research on their own responsibility. If such researchers are established outside the European Economic Area or work for an international organisation within the meaning of Article 44 of the GDPR, we will transfer the data to these researchers only if, subject to an assessment in the individual case, this is required for an important reason of public interest within the meaning of Article 49(1) d) of the GDPR, or if any other condition that is set out in Article 44 of the GDPR is met.

4. The aggregated data generated from the anonymised individual responses are publicly available via the monthly results dashboard published on the ZEW website. These data may also be made available to commercial enterprises within and outside the EU, as well as within and outside the EEA, for an appropriate fee.

We will store your data for the duration of our research projects so that we may continue to process them in the future as part of our economics-oriented research programme and for cross-sectional and longitudinal analyses.

You have the following rights against us with respect to the personal data concerning you: the right of access to the data pursuant to Article 15 of the GDPR in conjunction with Section 27(2) of the Federal Data Protection Act (BDSG); the right to rectification pursuant to Article 16 of the GDPR in conjunction with Recital 65 of the GDPR in conjunction with Section 27(2) of the BDSG; the right to restriction of processing pursuant to Article 18 of the GDPR in conjunction with Section 27(2) of the BDSG. When exercising any of these rights, please refer to the reference “ZEW-FM-Mit13-14DSGVO (Financial Market Survey)”.

However, the **right to object** under Article 21 of the GDPR in conjunction with Section 27(2) of the BDSG is not applicable, as the processing is carried out for scientific research purposes in the public interest, in accordance with Article 21(6) of the GDPR. Similarly, due to the public interest applicable in the present case, you do not have a right to have your data erased pursuant to Article 17(3) b) of the GDPR.

You may exercise your right to lodge a complaint pursuant to Article 77 of the GDPR with the Data Protection Officer for the State Ministry of Baden-Württemberg.

The provision of your data to us is neither required by law nor contract, nor is it necessary for entering into a contract. However, in order for us to be able to consider the questionnaire made available to you at all, we need at least your name, the name of your employer and your work e-mail address. Furthermore, the questionnaire will only be taken into account for research purposes if you answer at least one of the subject-specific questions.